

TAYLOR, et al v RITCHIE

25CV47902

PLAINTIFFS' MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES

This case involves a property dispute between Plaintiffs Kelly and Matthew Taylor ("Plaintiffs") and Lee (aka Lavina) Richie ("Defendant.")

Now before the Court is Plaintiff's motion to compel responses Form Interrogatories (General), Set One ("FROGS.") Plaintiff also seeks sanctions. The motion is unopposed.

I. Procedural History

On September 15, 2025, Plaintiffs propounded FROGS on Defendant. (Declaration of Justin Swierczek ("Swierczek Decl.") ¶ 3, Ex. A.) Responses were due thirty-five days thereafter, on October 20, 2025. (Code Civ. Proc. § §2030.260(a) and 1013(a).) As of the filing of the Motions on November 5, 2025, Defendant had not responded. Defendant has, however, filed her own discovery propounded on Plaintiffs – a meaningless filing for the Court absent any associated motion.

II. Legal Standard and Discussion

Pursuant to Cal. Code Civ. Proc. § 2030.290, if a party to whom interrogatories are directed fails to serve a timely response, then:

(a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.=

A party moving to compel initial responses under these sections is not required to meet and confer. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

Plaintiffs properly served Defendant with the discovery Motion via U.S. mail. Defendant has failed to provide responses to the discovery. Nor has Defendant filed an opposition to the Motion.

Accordingly, Plaintiff's Motion to compel responses to the FROGS is **GRANTED**. Defendant is ordered to provide verified, code-compliant responses within fifteen (15) days of this Order, without objections.

B. Sanctions

Plaintiffs seek sanctions related to Respondent's failure to provide responses to discovery.

Pursuant to Code Civ. Proc. section 2033.2030(a), the Court may impose sanctions for the failure to respond to discovery requests as a misuse of the discovery process. The Court may impose sanctions even where there has been no opposition filed. (Cal. Rule of Court 3.1348.)

Plaintiffs seek \$1,360 in sanctions. Plaintiffs' counsel avers that he spent one hour at \$260 researching and preparing the instant motion. He avers that he anticipated spending four additional hours preparing a reply and attending the hearing. As the motion was unopposed, Plaintiffs' counsel did not incur four hours in responding, and given this Court's tentative ruling system likely will not have to prepare for a hearing in this matter. Accordingly, the Court finds one hour in fees to be appropriate, plus the amount of the filing fee for the motion (\$60).

The Motion for Sanctions is **GRANTED**. Defendant is ordered to pay **\$320 in sanctions** for the discovery abuses.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiffs to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.

SANDERS v LUHRASSEBI, et al

25CV48201

DEFENDANTS' DEMURRER TO SECOND AMENDED COMPLAINT

Lynne Sanders ("Plaintiff") filed her Complaint arising out of allegations of predatory lending against Loancutters, Inc. dba Evoque Lending ("Evoque"), Mehdi Luhrassebi ("Luhrassebi"), Frank Ortiz ("Ortiz"), Lee Kulick ("Kulick"), and Pasquale Chiechi and Antonia Chichi as Co-Trustees of the Chiechi Family Trust dated February 4, 1993 ("Lenders.")

Now before the Court is a demurrer to the second through fifth causes of action in the Second Amended Complaint ("SAC") brought by Evoque, Luhrassebi, and Kulick (collectively "Evoque Defendants"). The motion is unopposed.

I. Facts

Evoque is a residential mortgage and/or private money-lending corporation primarily engaged in commercial and residential lending. (SAC ¶ 23.) Luhrassebi is believed to be the sole officer of Evoque and acts as its CEO, Secretary, CFO, and agent of service of process. (*Id.* ¶ 24.) Kulick is a senior loan consultant for Evoque and is alleged to have acted as an agent for Evoque. (*Id.* ¶ 26.)

Plaintiff has lived in the home located at 632 HWY 4, Murphys, CA 95237 (the "Property") since 1996 (SAC ¶ 2.) In 2022, Plaintiff began to suffer financial difficulties. At that time, however, she did not have a mortgage (having previously paid it off entirely), her credit score was 579, and she had a monthly income of \$1,300.00. (*Id.* ¶ 4.) Because she had been receiving advertisements from Evoque for some time, Plaintiff reached out to them regarding the possibility of a personal loan. (*Id.* ¶ 5.) Plaintiff was informed by Evoque's agents that her credit score did not matter and that the loan would fund quickly. (*Ibid.*)

Plaintiff filled out the necessary loan forms and accurately listed her occupations over the last ten years as follows: "a housekeeper for one year, a server for the 3 years before that, and bartender for over 20 years before that." (SAC ¶ 6.) Plaintiff alleges that she was very clear with Evoque's agents that the purpose of any loan was personal and